

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Thomas D. Zeff
Judge of the Superior Court
County of Stanislaus
800 11th Street
Modesto, CA 95354

Re: Hernandez, Antonio
CDC No.: AC5806
Case No.: 1244022
Date of Sentence: January 22, 2010

Dear Honorable Thomas D. Zeff:

The purpose of this letter is to provide the court with authority to resentence Antonio Hernandez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Hernandez was sentenced in 2010, and was convicted of section 245, subdivision (a)(2), Assault W/A Firearm. The trial court sentenced inmate Hernandez on January 22, 2010. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Hernandez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Hernandez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Complaint

cc: Honorable Ricardo Cordova, Stanislaus County Presiding Judge
Stanislaus District Attorney
Private Attorney

A C5806

AC 5806

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: STANISLAUS			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: ANTONIO HERNANDEZ AKA: CII NO.: BOOKING NO.: 1208883		DOB: 12/9/88	CASE NUMBER 1244022
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ NOT PRESENT	☐ AMENDED ABSTRACT
DATE OF HEARING 1/22/10	DEPT. NO. 5	JUDGE THOMAS D. ZEFF	
CLERK DEBORAH BILYEU	REPORTER HEATHER LOGAN	PROBATION NO. OR PROBATION OFFICER	☒ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE SHAWN BESSEY		COUNSEL FOR DEFENDANT FRANK CARSON ☐ APPTD.	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	COMMITTED	CONVICTION (MO./DATE/YEAR)	JURY	COURT	PLEA	TERM (L, M, Y)	YRS.	MOS.
3	PC	245(a)(2)	ASSAULT W/A FIREARM	2008	1/22/10			X	M	03	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
3	12022.7	3	186.22(b)(1)	10			13 00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Defendant sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment) Defendant was ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): **\$3,200** per PC1202.4 (b) forthwith per PC 2085.5; **\$3,200** per PC 1202.45 suspended unless parole is revoked.

\$_____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☐ \$_____ / ☒ Amount to be determined to ☐ * victim(s) ☒ Restitution Fund* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.Fine(s): \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.☒ Court Security Fee of \$ **30** per PC 1465.8. ☒ Criminal Conviction Assessment of \$ **30** per GC 70373.6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify): submit DNA purs. to PC 296.7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Def't's Race / National Origin **H**

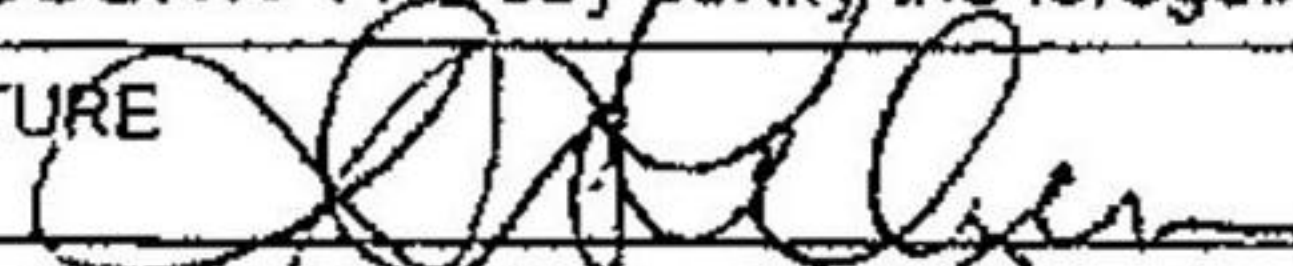
8. Other orders (specify): Probation ordered to prepare PC 1203.01 report.

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: **16 00**10. ☐ This sentence is to run concurrent with (specify):11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

12. DATE SENTENCE PRONOUNCED 1/22/10	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS: 779	ACTUAL LOCAL TIME 678	LOCAL CONDUCT CREDITS 101	☐ 4019 ☒ 2933.1	TIME SERVED IN STATE INSTITUTION DMH CDCR CRC [] [] []
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this case.

DEPUTY'S SIGNATURE  **3-5-10**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. All sentencing must be referred to in this document.